



MYLINE TENANCY SERVICES
[TENANCY CODE]
[TŠEBETSO EA KHIRO LE KHIRISO EA BOLULO]

Wandisile Matsoso

2/23/2023





MyLine Tenancy Services

All rights reserved 2023 ©

This document was prepared in good faith with the basis of the information it contains. MyLine Tenancy Services is the owner of the copyright in all the information featured in this document and of all related intellectual property rights including (all the trademarks & patents). No part of this document may be copied, reproduced, amended, used or transmitted in any way without the prior consent of MyLine Tenancy Services.

TENANCY

SERVICES



my Line™

LESOTHO



Residential Tenancy Code 2023

This Code is developed by the MyLine Tenancy Services to guide the relationship between all stakeholder involved in the residential tenancy services for the purpose of improving these tenancy services

[Tokomane eena ea tšamaiso e hlophiloe ke tšebeletso ea MyLine Tenancy Services ho tataisa likamano pakeng tsa mahlakore oohle ao a amehang tšebetsong eena ea khiro le khiriso ea matlo a bolulo ho ntlafatsa tsona tšebeletso tse]

PART I

DEFINITIONS

1. Short Title
2. Interpretations
3. Application of this code

PART II

TANANCY ADMINISTRATIVE PARTIES (TAP)

4. Administration
5. Composition of the TAP
6. Administrative Reporting

PART III

MUTUAL RIGHTS AND OBLIGATIONS OF LANDLORD AND TENANT

Entering into residential tenancy agreement

7. Information to be provided by landlords to tenants
8. Residential tenancy agreements
9. Cost of preparing agreement
10. False information from tenant
11. Discrimination against tenants with children

Rent

12. Permissible consideration for residential tenancy
13. Rent in advance
14. Variation of rent
15. Manner of payment of rent
16. Parties' duty to keep proper records of rent and other payments
17. Duty to provide statement or give receipt for rent



18. Payment of rent by electronic transaction
19. Accrual and apportionment of rent
20. Abolition of distress for rent

Tenant's entitlement to possession and quiet enjoyment

21. Vacant possession etc.
22. Quiet enjoyment

Security of premises

23. Security of premises

Landlord's obligation in regard to condition of the premises

24. Cleanliness
25. Landlord's obligation to repair

Tenant's obligations in relation to the premises and ancillary property

26. Tenant's responsibility for cleanliness, damage and loss
27. Alteration of premises

Tenant's conduct on the premises

28. Tenant's conduct

Landlord's obligation to advice of sale of premises

29. Sale of residential premises

Landlord's right of entry

30. Right of entry

Tenant's vicarious liability

31. Vicarious liability

Harsh or unconscionable terms

32. Harsh or unconscionable terms

Miscellaneous

33. Accelerated rent and liquidated damages
34. Duty of mitigation
35. Compensation for expenses

PART IV

TERMINATION OF RESIDENTIAL TENANCY AGREEMENTS

Termination generally

36. Termination of residential tenancy
37. Agreement for fixed term continues if not terminated



Termination by the landlord

- 38. Notice of termination by landlord on ground of breach of agreement
- 39. Termination because possession is required by landlord for certain purposes
- 40. Termination by landlord without specifying a ground of termination
- 41. Notice to be given at end of fixed term
- 42. Termination where agreement frustrated
- 43. Limitation of right to terminate

Termination by tenant

- 44. Notice of termination by tenant on ground of breach of the agreement
- 45. Termination by tenant if residential premises for sale
- 46. Termination by tenant without specifying a ground of termination
- 47. Notice to be given at end of fixed term
- 48. Termination where agreement frustrated

Termination by the MyLine Tenancy Services and/or by the Tenancy Administrative Parties (TAPs)

- 49. Termination on application by landlord
- 50. Termination on application by tenant
- 51. Termination based on hardship
- 52. Termination based on domestic abuse
- 53. MyLine Tenancy Services and/or the TAP may terminate tenancy if tenant's conduct unacceptable.

Notices of termination

[Litemoso tsa Pheletso]

- 54. Form of notice of termination [Foromo ea temoso ea pheletso]
- 55. Termination of periodic tenancy [Pheletso ea bolulo bo felang kapele]
- 56. Preliminary [Tlhophisetso]

Repossession of premises

[Ho nka Taolo ea Matlo a Bolulo]

- 57. Order for possession [Taelo ea ho nka taolo ea matlo a bolulo]
- 58. Abandoned premises [Nyahlatso ea matlo a bolulo]
- 59. Repossession of premises [Ho khutlisetsa taolo ea matlo a bolulo]
- 60. Forfeiture of head tenancy not to result automatically in destruction of right to possession under residential tenancy agreement [Tahlehelo ea bolulo esa susumetseng tšenyō ea tokelo ea taolo ea matlo tlasa tumellano ea bolulo]

Abandoned property

[Nyahlatso ea Thepa Matlong a Hiriloeng]

- 61. Abandoned property [Nyahlatso ea thepa]
- 62. Offence to deal with abandoned property in unauthorised way [Phoso ea ho sebetsa ka matlo a nyahlalitsoeng ka tsela esa lumellehang]



63. Action to deal with abandoned property other than personal documents [Khato ea ho sebitsana le thepa e nyahlalitseong ntle le litokomane tsa motho]
64. Action to deal with abandoned personal documents [Khato ea ho sebitsana le litokomane tse nyahlalitsoeng]

Enforcement of orders for possession

65. Enforcement of orders for possession

PART V

RESIDENTIAL TENANCY DATABASE

66. Definitions
67. Application
68. Notice of usual use of database
69. Notice of listing if database used
70. Listing can be made for particular breaches by particular persons
71. Further restriction on listing
72. Ensuring quality of listing—landlord's or agent's obligation
73. Ensuring quality of listing—database operator's obligation
74. Providing copy of personal information listed
75. Keeping personal information listed
76. Powers of the Local Council
77. Notifying relevant non-parties of the Local Council order about listing

PART VI

DISPUTE RESOLUTION

Conciliation Definitions

78. Definitions
- Conciliation of dispute by MyLine Tenancy Services
79. Conciliation of dispute by MyLine Tenancy Services
Duties and procedure
80. Functions of the MyLine Tenancy Services in conciliation of dispute
81. Procedure

Intervention

82. Power to intervene

Powers of the MyLine Tenancy Services

83. Powers of MyLine Tenancy Services
84. Conditional and alternative orders
85. Restraining orders



Representation

86. Representation

87. Remuneration of representative

THE MYLINE TENANCY SERVICES DRAFTED THE CODE AS FOLLOWS:

[MYLINE TENANCY SERVICES SE NGOTSE TOKOMANE TJENA:]

PART I [KAROLO EA PELE]

Preliminary [Tlhophisetso]

- | | | |
|--------|---|----------------|
| 1. | This Code may be cited as the <i>Residential Tenancy Code 2023</i> as drafted by the MyLine Tenancy Services | Short title |
| 2. (1) | <p>In this Code, unless the contrary intention appears—</p> <p>Ancillary property means property (not forming part of premises subject to a residential tenancy agreement) that is provided by the landlord, either under the residential tenancy agreement or independently of the agreement, for use by the tenant;</p> <p>Chief means a member of the TAP who represents part of the Lesotho local government structures;</p> <p>Tenancy Administrative Parties (TAP) means a Stakeholders involved in the residential tenancy services which will be led by the community's local governing council;</p> <p>Co-tenant means a tenant who is 1 of 2 or more tenants under a residential tenancy agreement;</p> <p>Councillor means a member of the TAP who represents part of the Lesotho local government structures;</p> <p>Decision, of the TAP, has the same meaning as in any authoritative legislative structure;</p> <p>Domestic abuse means an act of abuse committed by a person against a domestic associate or a former domestic associate of the person;</p> <p>Domestic associate—2 persons are domestic associates, 1 of the other, if— (a) they are married to each other; or (b) they are domestic partners; or (c) they are in some other form of intimate personal relationship in which their lives are interrelated and the actions of 1 affect the other; or (d) 1 is the child, stepchild or grandchild, or is under the guardianship, of the other (regardless of age); or (e) 1 is a child, stepchild or grandchild, or is under the guardianship, of a person who is or was formerly in a relationship with the other under paragraph (a), (b) or (c) (regardless of age); or (f) 1 is a child and the other is a person who acts in <i>loco parentis</i> in relation to the child; or (g) 1 is a child who normally or regularly resides or stays with the other; or (h) they are brothers or sisters or brother and sister; or (i) they are otherwise related to each other by or through blood, marriage, a domestic partnership or adoption; or (j) they are related according to kinship rules or are both members of some other culturally recognised family group;</p> <p>Domestic facility requiring instructions means an appliance or device provided by a landlord for the use of a tenant for which it would be reasonable to expect the tenant to require instructions;</p> <p>Domestic partner means a person who forms an intimate personal relationship with the other which their lives are interrelated and the action of 1 affects the other;</p> <p>Domestic services agreement means an agreement with a tenant of residential premises for the provision of domestic services (such as meals, cleaning, gardening and laundry of linen);</p> <p>Fund means the Residential Tenancies Fund;</p> <p>Housing assessment order means the directive given to analyse the residential property before, during and after leasing;</p> | Interpretation |



Housing demolition order means the directive given to destroy the current residential property;
Housing improvement order means the directive to develop the current residential property;
Intervention order means a directive given by the TAP or the court to mediate a situation;

Landlord means— (a) the person who grants the right of occupancy under a residential tenancy agreement; or (b) a successor in title to the tenanted premises whose title is subject to the tenant's interest, and includes a prospective landlord and a former landlord;

Lawyer means a person entitled to practise the profession of the law;

Notice to vacate means a written document and evaluated by the MyLine Tenancy Services or the TAP from the landlord to the tenant to leave the property;

Personal documents mean official documents, photographs, correspondence or other documents that it would be reasonable to expect a person might wish to keep;

Premises include a part of the residential property;

Residential premises means premises for occupation as a place of residence;

Residential tenancy agreement means an agreement under which a person grants another person, for valuable consideration, a right (which may, but need not, be an exclusive right¹) to occupy premises for the purpose of residence; (a) rooms are available for residential occupation, and (b) accommodation is available for at least three persons;

tenancy dispute means— (a) a claim under a residential tenancy agreement; or (b) a dispute between parties or former parties to a residential tenancy agreement, about matters arising under the agreement or this Act; or (c) any matter that may be the subject of an application under this code to the TAP;

Tenant means the person who is granted a right of occupancy under a residential tenancy agreement or a person to whom the right passes by assignment or operation of law and includes a prospective tenant or a former tenant;

MyLine Tenancy Services means the entity responsible for coordinating efforts of this code and all its responsibilities and the residential leasing segment of the Lesotho real estate market;

- (2) If this Code provides for something to be done within a specified period from a particular day, the period will be taken not to include the particular day.
- (3) If this Code provides that action may be taken after the expiration of a specified period of days, the period will be taken to be a period of clear days.
- (4) For the purposes of this Code, a residential tenancy agreement includes an agreement granting a corporation the right to occupy premises that are occupied, or that are intended to be occupied, as a place of residence by a natural person.

Application of this Code

3. This Code does not apply to—
 - (a) an agreement giving a right of occupancy in—
 - (i) a hotel or motel;
 - (ii) an educational institution, college, hospital or nursing home;
 - (iii) club premises;
 - (iv) a retirement home
 - (b) an agreement genuinely entered into for the purpose of conferring on a person a right to occupy premises for a holiday;
 - (c) an agreement conferring a right to occupy premises for the purpose of residence but under which no rent is payable;



- (d) an agreement for the sale of land that confers a right to occupy premises for a period of 28 days or less on a party to the agreement;
- (e) a mortgage;
- (f) an agreement arising under a scheme in which—
 - (i) a complex of adjacent premises is owned by a company;
 - (ii) the premises are let by the company to persons who jointly have a controlling interest in the company;
- (g) a prescribed agreement or an agreement of a prescribed class

PART II

TENANCY ADMINISTRATIVE PARTIES (TAP)

Administration

- 4. The MyLine Tenancy Services is responsible for the administration of this code and the Tenancy Administrative Parties (TAP) is a body of governance structured by the MyLine Tenancy Services under this code to oversee the operations of the MyLine Tenancy Services in the societies and communities and also coordinate activities of governance and management in relation to the residential tenancies.

Composition of the TAP

- 5. The Tenancy Administrative Parties structure is composed of three units—
 - (a) The MyLine Tenancy Services Representation
 - (b) The Community Representation
 - (c) The Local Government Structures Representation
 - (i) Chiefs
 - (ii) Councilors

Administrative Reporting

- 6. (1) The MyLine Tenancy Services will process all reporting documents from tenants to landlords, from landlords to tenants, from both tenants and landlords to the TAP and vice-versa and keep all documented records exchanged by all this parties involved in the residential tenancies activities.
- (2) The MyLine Tenancy Services are responsible for administering all reports to all stakeholders on a month to month, quarter to quarter and bi-annual and annual basis depending on each stakeholder of concern —
 - (a) Tenants — (month to month)
 - (b) Landlords — (month to month)
 - (c) TAP — (quartile, bi-annual & annually)

PART III

MUTUAL RIGHTS AND OBLIGATIONS OF LANDLORD AND TENANT

Entering into residential tenancy agreement

Information to be provided by landlords to tenants

- 7. (1) A landlord must ensure that a tenant is given, before or at the time the landlord and tenant enter into a residential tenancy agreement, a written notice setting out—



- (a) The relationship of the Landlord and the MyLine Tenancy Services as per entering into the agreement
 - (b) The preliminary briefings of rules and regulations of the residential premises to be assigned for in the agreement.
 - (c) the landlord's full name and address for service of documents (which must not be the agent's address for service)
- (2) A landlord in cooperation with the MyLine Tenancy Services must take reasonable steps to ensure that a tenant is given, before or at the time the tenant commences occupation of the premises under a residential tenancy agreement, manufacturers' manuals, or written or oral instructions, about the operation of any domestic facilities requiring instructions.
- (3) If a person succeeds another as the landlord, the new landlord in cooperation with the MyLine Tenancy Services must, within 14 days, ensure that the tenant is given a written notice setting out—
- (a) the new relationship with the MyLine Tenancy Services and the new Landlord
 - (b) the set out new rules and regulations of how the new Landlord will set out operations on the premises
 - (c) the new landlord's full name and address for service of documents (which must not be the agent's address for service)
- (4) If a name, address or telephone number of which the landlord is required to notify the tenant under this section changes, the landlord must, within 14 days of becoming aware of the change, notify the tenant in writing of the change.

Residential tenancy agreements

8. (1) The MyLine Tenancy Services will draft in these agreements and facilitate the enforcement of their applicability in ensuring that—
- (a) they state clearly in a prominent position at the beginning of the agreement that—
 - (i) the agreement is a residential tenancy agreement;
 - (ii) the parties to the agreement should consider obtaining legal advice about their rights and obligations under the agreement
 - (b) they set out—
 - (i) the landlord's full name and address for service of documents
 - (ii) the tenant's name
 - (iii) the address of the residential premises
 - (iv) the terms of the agreement, including—
 - (A) the amount of rent payable
 - (B) the interval between rental payment times
 - (C) the method by which rent is to be paid
 - (D) any agreement reached as to responsibility for rates and charges for water supply
 - (E) any other terms of the agreement (including, for example, terms in relation to pets or responsibility for repairs
 - (c) be dated and signed by the parties to the agreement
 - (d) comply with any other requirements prescribed by the regulations and this code
- (2) A landlord must not enter into a residential tenancy agreement unless the landlord (through the MyLine Tenancy Services) has first given the tenant a written guide that explains the tenant's rights and obligations under such an agreement and is in the form approved by the MyLine Tenancy Services for the purposes of this section.



- (3) The matters specified or agreed in a written residential tenancy agreement entered into after the commencement of this section may not be varied unless the variation is in writing and dated and signed by the landlord and tenant presented to the MyLine Tenancy Services for approval.
- (4) A landlord under a written residential tenancy agreement must keep a copy of the agreement and expect the MyLine Tenancy Services to process and storage all relevant agreements in electronic form for variation of the agreement sake and termination of original agreements.
- (5) If a landlord (through the MyLine Tenancy Services) invites or requires a tenant or prospective tenant to sign a written residential tenancy agreement, the landlord (through the MyLine Tenancy Services) must ensure that—
 - (a) the tenant receives a copy of the residential tenancy agreement when the tenant signs it;
 - (b) if the agreement has not then been signed by the landlord, a copy of the agreement, as executed by all parties, is delivered to the tenant within 21 days after the tenant gives the agreement back to the landlord or the landlord's agent to complete its execution

Cost of preparing agreement

9. The cost of preparing a written residential tenancy agreement must be borne by the MyLine Tenancy Services for all parties involved.

False information from tenant

10. A tenant must not give a landlord and the MyLine Tenancy Services false information about the tenant's identity or place of original and all needed information.

Discrimination against tenants with children

11. (1) A person must not refuse to grant a tenancy to another on the ground that it is intended that a child should live on the premises.
- (2) A person must not—
 - (a) instruct a person not to grant;
 - (b) state an intention (by advertisement or in any other way) not to grant, a tenancy on the ground that it is intended that a child should live on the premises

Rent

Permissible consideration for residential tenancy

12. (1) A person must not require or receive from a tenant or prospective tenant a payment, other than rent, for a residential tenancy or the renewal or extension of a residential tenancy.
- (2) However—
 - (a) the landlord may lawfully require or receive consideration for an option to enter into a residential tenancy agreement but, in that case, the following condition applies:
 - (i) if the prospective tenant enters into the residential tenancy agreement, the landlord must apply the consideration towards rent payable under the agreement;
 - (ii) if the prospective tenant does not exercise the option to enter into the residential tenancy agreement, the landlord may retain the consideration;
 - (b) the landlord may require the tenant to reimburse the landlord for rates and charges for water supply that are to be borne by the tenant under the residential tenancy agreement or a collateral agreement;



- (c) the landlord may lawfully require or receive a payment of a class the landlord is authorised to require or receive by another provision of the agreements under the regulation of this code

Rent in advance

13. (1) If rent has been paid under a residential tenancy agreement, a person must not require a further payment of rent until the end of the last period for which rent has been paid.
- (2) A person must not require another to give post-dated negotiable instrument in payment of rent under a residential tenancy agreement.

Variation of rent [Phapang ea Rent]

14. (1) The landlord (through the MyLine Tenancy Services) may increase the rent payable under a residential tenancy agreement by giving written notice to the tenant specifying the date as from which the increase takes effect.
- (2) However—
- (a) the right to increase the rent may be excluded or limited by the terms of the residential tenancy agreement;
 - (b) if the tenancy is for a fixed term, the residential tenancy agreement is taken to exclude an increase in rent during the term unless it specifically allows for an increase in rent;
 - (c) the date fixed for an increase of rent must be at least 12 months after the date of the agreement or, if there has been a previous increase of rent under this section, the last increase and at least 60 days after the notice is given but—
 - (i) if a rent control notice that has applied in respect of the rented property ceases to be in force, the landlord (through the MyLine Tenancy Services) may, by notice given under this section within 60 days after the rent control notice ceases to be in force, increase the rent for the premises from a date falling at least 14 days after the notice is given;
 - (ii) if the landlord and the residential tenancy agreement provides for variation of rent in accordance with the tenant's income, the landlord may increase the rent on the ground of a variation in the tenant's income from a date falling at least 14 days after the notice of the increased rent is given;
 - (iii) if the landlord under a residential tenancy agreement that allows the landlord to change the rent on the basis of the MyLine Tenancy Services running calculations of the rent payable under the agreement, then the landlord (through the MyLine Tenancy Services) must give the tenant written notice that there is to be a change in the basis of calculating rent as from a specified date (which must be at least 60 days after the notice is given and at least 12 months from the date of the agreement, or if there has been a previous change in the basis of rent calculation, at least 12 months from the date of the last such change), the rent may be increased to accord with the new basis of rent calculation as from the specified date without further notice under this section
- (3) Despite subsections (1) and (2), the rent payable under a residential tenancy agreement may be increased at any time by mutual agreement between the landlord and the tenant.
- (4) The rent payable under a residential tenancy agreement may be reduced by mutual agreement between the landlord and the tenant.



- (5) A reduction of rent may be made on a temporary basis so that the rent reverts to the level that would have been otherwise applicable at the end of a specified period.
- (6) If the rent payable under a residential tenancy agreement is increased or reduced under this section, the terms of the agreement are varied accordingly.
- (7) This section does not affect the operation of a provision of a residential tenancy agreement under which the rent payable under the agreement changes automatically at stated intervals on a basis set out in the agreement.
- (8) For the purposes of this section, a series of residential tenancy agreements between the same parties and relating to the same premises is treated as a single residential tenancy agreement unless at least 12 months have elapsed since rent for the premises was fixed or last increased.

Manner of payment of rent

15. A landlord under a residential tenancy agreement must permit a tenant to pay rent under the agreement by at least 1 means that does not involve the payment of cash by the tenant or the collection of rent from the tenant by a third party, for the collection service.

Parties' duty to keep proper records of rent and other payments

16. (1) A landlord (through the MyLine Tenancy Services) under a residential tenancy agreement must ensure that the following information is recorded in respect of payments received under the agreement:
 - (a) the date on which the payment was received;
 - (b) the name of the person making the payment;
 - (c) the amount paid;
 - (d) the address of the premises to which the payment relates;
 - (e) if the payment is for rent—the period of the tenancy to which the payment relates;
 - (f) if the payment is not for rent—a description of the purpose of the payment, including, if applicable, the period of time to which the payment relates
- (2) A person must not—
 - (a) make a false entry in a record of a payment received under a residential tenancy agreement;
 - (b) falsify the record in any other way

Duty to provide statement or give receipt for rent

17. (1) A landlord (through the MyLine Tenancy Services) under a residential tenancy agreement must, at the written request of the tenant, give the tenant a statement of the information recorded by the landlord (through the MyLine Tenancy Services) under section 16(1) in respect of the rent received during the period specified in the request (and such statement must be given to the tenant within 7 days of the making of the request).
- (2) If a tenant pays rent other than into an MPS account, the MyLine Tenancy Services will organise for the Landlord to issue out a receipt note to the person pays the rent within 48 hours after receiving the rent, and the information required to be recorded by the landlord (through the MyLine Tenancy Services) under section 16(1) in respect of the rent received.

Payment of rent by electronic transaction

18. The MyLine Tenancy Services will organize for if a tenant pays rent into an MPS account, the payment will be taken to have been made when it is credited to the MPS account.



Accrual and apportionment of rent

19. (1) The rent payable under a residential tenancy agreement accrues from day to day unless specified otherwise in the agreement.
- (2) If rent is paid in advance, and the tenancy ends before the end of the period for which rent has been paid, the landlord must refund the appropriate proportion of the amount paid to the tenant or apply it towards other liabilities of the tenant to the landlord.

Abolition of distress for rent

20. A landlord is not entitled to distrain goods of a tenant for non-payment of the rent payable under a residential tenancy agreement.

Tenant's entitlement to possession and quiet enjoyment

Vacant possession

21. (1) It is a term of a residential tenancy agreement that the tenant is entitled to vacant possession of the premises (except for a part of the premises in respect of which a right to exclusive possession is not given by the agreement) from the day the tenancy begins.
- (2) It is a term of a residential tenancy agreement that there is no legal impediment of which the landlord has, or ought to have knowledge, to the tenant's occupation of the premises for the period of the tenancy as a place of residence.

Quiet enjoyment

22. (1) It is a term of a residential tenancy agreement that—
- (a) the tenant is entitled to quiet enjoyment of the premises without interruption by the landlord or a person claiming under the landlord or with superior title to the landlord's title;
 - (b) the landlord will not cause or permit an interference with the reasonable peace, comfort or privacy of the tenant in the tenant's use of the premises;
 - (c) the landlord will take reasonable steps to prevent other tenants of the landlord in occupation of adjacent premises from causing or permitting interference with the reasonable peace, comfort or privacy of the tenant in the tenant's use of the premises
- (2) If the landlord causes or permits interference with the reasonable peace, comfort or privacy of the tenant in the tenant's use of the premises in circumstances that amount to harassment of the tenant, the landlord is guilty of an offence.

Security of premises

Security of premises

23. (1) It is a term of a residential tenancy agreement that—
- (a) the landlord will take reasonable steps to provide and maintain the locks and other devices that are necessary to ensure the premises are reasonably secure;
 - (b) neither the landlord nor the tenant will not alter or remove a lock or security device or add a lock or security device without the consent of the other;
 - (c) neither the landlord nor the tenant will unreasonably withhold his or her consent to the alteration, removal or addition of a lock or security device by, and at the expense of, the other
- (2) A landlord or tenant who, without reasonable excuse, contravenes the term of the agreement arising under subsection (1)(b) is guilty of an offence.



- (3) If the MyLine Tenancy Services, without reasonable excuse, alters or removes a lock or security device, or adds a lock or security device, without the tenant's consent, the MyLine Tenancy Services is guilty of an offence.

Landlord's obligation in regard to condition of the premises

Cleanliness

24. It is a term of a residential tenancy agreement that the landlord (through the MyLine Tenancy Services) will ensure that the premises, and ancillary property, are in a reasonable state of cleanliness when the tenant goes into occupation of the premises.

Landlord's obligation to repair

25. (1) It is a term of a residential tenancy agreement that the landlord—
- (a) will ensure that the premises, and ancillary property, are in a reasonable state of repair at the beginning of the tenancy and will keep them in a reasonable state of repair having regard to their age, character and prospective life;
 - (b) will comply with statutory requirements affecting the premises
- (2) The obligation to repair applies even though the tenant had notice of the state of disrepair before entering into occupation
- (3) However—
- (a) the landlord will not be regarded as being in breach of the obligation to repair unless—
 - (i) the landlord has notice of the defect requiring repair;
 - (ii) the landlord fails to act with reasonable diligence to have the defect repaired;
- (4) If—
- (a) premises or ancillary property are in a state of disrepair that does not arise from a contravention of the residential tenancy agreement by the tenant;
 - (b) the state of disrepair is, unless remedied, likely to result in personal injury or damage to property or undue inconvenience;
 - (c) the landlord—
 - (i) has been notified of the state of disrepair by the tenant but has failed to take reasonable action to remedy the state of disrepair;
 - (ii) has not been notified of the state of disrepair despite the tenant's reasonable attempts to do so, then the tenant is entitled—
 - (d) to reasonable compensation from the landlord in respect of any damage to property resulting from the state of disrepair after the tenant has notified, or made a reasonable attempt to notify, the landlord of the state of disrepair (however, the tenant must take reasonable steps to mitigate any loss and is not entitled to compensation for damage that could have been avoided by those steps);
 - (e) to recover from the landlord reasonable costs incurred by the tenant in having the state of disrepair remedied, but only if the repairs are carried out by a person who is licensed to carry out the necessary work and the person provides the landlord with a report on the work carried out and the apparent cause of the state of disrepair.
- (5) The MyLine Tenancy Services in assistance with the TAP may on application by the tenant order the landlord to pay to the tenant compensation to which the tenant is entitled under this section.

Tenant's obligations in relation to the premises and ancillary property



Tenant's responsibility for cleanliness, damage and loss

26. (1) It is a term of a residential tenancy agreement that the tenant—
- (a) must keep the premises and ancillary property in a reasonable state of cleanliness;
 - (b) must replace, or compensate the landlord for the reasonable cost of replacing, any ancillary property lost or destroyed while in the care of the tenant;
 - (c) must notify the landlord of damage to the premises or ancillary property;
 - (d) must not intentionally or negligently cause or permit damage to the premises or ancillary property
- (2) A tenant who intentionally causes serious damage to the premises or ancillary property is guilty of an offence.
- (3) It is a term of a residential tenancy agreement that, at the end of the tenancy, the tenant must give the premises and ancillary property back to the landlord in reasonable condition and in a reasonable state of cleanliness.
- (4) If a tenant unintentionally causes damage to the premises or ancillary property as a result of the use of a domestic facility requiring instruction, the landlord is not entitled to compensation for the damage unless—
- (a) the domestic facility is listed in the residential tenancy agreement as a domestic facility requiring instruction;
 - (b) the landlord complied with section 7(2) in relation to the domestic facility
- (5) In deciding whether premises or other property is in reasonable condition, its condition when the tenant took possession of it, and the probable effect of reasonable wear and tear since that time, must be taken into account.

Alteration of premises

27. (1) It is a term of a residential tenancy agreement that a tenant must not, without the landlord's written consent (through the MyLine Tenancy Services), make an alteration or addition to the premises.
- (2) It is a term of a residential tenancy agreement that a landlord will not unreasonably withhold his or her consent to an alteration or addition to the premises that is necessary to ensure the provision of infrastructure or a service of a prescribed kind.
- (3) Subsection (1) does not apply in relation to an alteration or addition required under a housing improvement order or a housing demolition order that the tenant has been authorised to carry out
- (4) A tenant may remove a fixture affixed to the premises by the tenant unless its removal would cause damage to the premises.
- (5) If a tenant causes damage to the premises by making an alteration or addition to the premises or by removing a fixture, the tenant must notify the landlord and, at the option of the landlord, repair the damage or compensate the landlord for the reasonable cost of repairing the damage.

Tenant's conduct on the premises

Tenant's conduct

28. It is a term of a residential tenancy agreement that—
- (a) the tenant must not use the premises, or cause or permit the premises to be used, for an illegal purpose;
 - (b) the tenant must not cause or permit a nuisance;



- (c) the tenant must not cause or permit an interference with the reasonable peace, comfort or privacy of another person who resides in the immediate vicinity of the premises

Landlord's obligation to advice of sale of premises

Sale of residential premises

- 29. (1) It is a term of a residential tenancy agreement that—
 - (a) the landlord will give the tenant written notice (through the MyLine Tenancy Services) of the landlord's intention to sell the residential premises not later than 14 days after the landlord enters into a sales agency agreement for the sale of the premises or determines to make the premises available for inspection by prospective purchasers;
 - (b) the residential premises will not be advertised for sale or made available for inspection by prospective purchasers before the day falling 14 days after the tenant is given notice of the landlord's intention to sell the premises
- (2) It is a term of a residential tenancy agreement that, if a contract is entered into for the sale of the residential premises, the landlord must, not less than 14 days before the day of settlement under the contract or, if the day of settlement is less than 14 days after the day on which the contract is entered into, as soon as possible after the contract is entered into, give the tenant written notice of the name of the purchaser under the contract and the date from which rent is to be paid to him or her.

Landlord's right of entry

Right of entry

- 30. (1) It is a term of a residential tenancy agreement that the landlord (or through the MyLine Tenancy Services) may enter the premises—
 - (a) in an emergency;
 - (b) to collect rent (if a reasonable alternative method of payment of rent not involving attendance at the premises has been offered to, but not accepted by, the tenant)—
 - (i) not more than once each week;
 - (ii) only at a time previously arranged with the tenant (which may only be outside normal hours if the arrangement has been made no more than 7 days before the day of entry);
 - (c) to inspect the premises—
 - (i) not more than once each 4 weeks;
 - (ii) only in accordance with a written notice given to the tenant no less than 7 and no more than 14 days before the day of entry—
 - (A) stating the purpose of the proposed entry and the date of the proposed entry;
 - (B) specifying a period of up to 2 hours (which must be within normal hours) within which the proposed entry will occur, (however, if the premises are in a remote location or it is necessary for the landlord or the MyLine Tenancy Services to be accompanied by a person for the purposes of the inspection, the notice need not specify a 2 hour period within which the proposed entry is to occur, but the entry must occur within normal hours);
 - (d) to inspect the premises in accordance with an order of the TAP
 - (e) to carry out garden maintenance, but only—
 - (i) at a time previously arranged with the tenant no more than 7 days before the day of entry;



- (ii) in accordance with a written notice given to the tenant no less than 7 and no more than 14 days before the day of entry stating the purpose of the proposed entry and the date and time (which must be within normal hours) of the proposed entry;
 - (iii) at the request of the tenant;
 - (f) to carry out necessary maintenance (other than garden maintenance) or repairs (other than in an emergency), but only at the request of the tenant, or at a time within normal hours of which the tenant has been given at least 48 hours' notice;
 - (g) to carry out the requirements of a housing assessment order or housing improvement order at a reasonable time of which the tenant has been given at least 48 hours' notice;
 - (h) to show the premises to prospective tenants—
 - (i) at the request of the tenant;
 - (ii) during the period of 28 days preceding the termination of the tenancy agreement, but only on a reasonable number of occasions and only at a time within normal hours of which the tenant has been given reasonable notice;
 - (i) to show the premises to prospective purchasers, on not more than 2 occasions in any 7 day period (unless the tenant has agreed otherwise), but only—
 - (i) at the request of the tenant;
 - (ii) during the period of 28 days preceding the termination of the tenancy agreement, but only on a reasonable number of occasions and only at a time within normal hours of which the tenant has been given reasonable notice;
 - (j) to show the premises to prospective purchasers, on not more than 2 occasions in any 7 day period (unless the tenant has agreed otherwise), but only—
 - (i) at a time previously arranged with the agreement of the tenant (who must not unreasonably refuse to agree to times when the premises are to be available for inspection by prospective purchasers);
 - (ii) if agreement cannot be reached with the tenant—at a time within normal hours of which the tenant has been given reasonable notice;
 - (k) if the landlord (through the MyLine Tenancy Services) has given the tenant notice of a breach of the residential tenancy agreement under section 80—to determine whether the breach has been remedied, but only in accordance with a written notice given to the tenant no less than 7 and no more than 14 days before the day of entry stating the purpose of the proposed entry and the date and time (which must be within normal hours) of the proposed entry;
 - (l) for some other genuine purpose, but only—
 - (i) in accordance with a written notice given to the tenant no less than 7 and no more than 14 days before the day of entry and stating the purpose of the proposed entry and the date and time (which must be within normal hours) of the proposed entry;
 - (ii) with the consent of the tenant;
 - (m) if the landlord believes on reasonable grounds that the tenant has abandoned the premises
- (4) It is a term of a residential tenancy agreement that if the tenant has indicated to the landlord that he or she wishes to be present during the period when the landlord or a MyLine Tenancy Services representative is at the premises, the landlord (or a MyLine Tenancy Services Representative) may not enter the premises unless a reasonable effort has been made to arrange for the visit to occur at a time when it is convenient for the tenant to be present (having regard to the work and other commitments of both the tenant and the persons entering the premises).
- (5) Subsection (2) does not apply to entry under subsection (1)(a), (h) or (j).
- (6) It is a term of a residential tenancy agreement that neither the landlord nor the MyLine Tenancy Services may enter the premises otherwise than in accordance with the preceding subsections.



- (7) This section does not apply to a part of the premises that the tenant uses in common with the landlord or another tenant of the landlord i.e. outdoor-restrooms, garage etc.
- (8) In this section **normal hours** means the hours between 8am and 5pm on any day other than a Sunday or public holiday.

Tenant's vicarious liability

Vicarious liability

31. It is a term of a residential tenancy agreement that, if a person is on the premises at the invitation or with the consent of the tenant, the tenant is vicariously responsible for an act or omission by the person that would, if it had been an act or omission of the tenant, have constituted a breach of the agreement.

Harsh or unconscionable terms

Harsh or unconscionable terms

32. (1) The TAP may, on application by a tenant (through the MyLine Tenancy Services), make an order rescinding or varying a term of a residential tenancy agreement if satisfied that the term is harsh or unconscionable.
- (2) On making an order under subsection (1), the TAP may make consequential changes to the residential tenancy agreement or another related document.

Miscellaneous

Accelerated rent and liquidated damages

33. (1) If a residential tenancy agreement provides that, upon breach by the tenant of a term about rent or other term of the agreement, the tenant is liable to pay—
- (a) all or any part of the rent remaining payable under the agreement;
 - (b) rent of an increased amount;
 - (c) an amount by way of penalty;
 - (d) an amount by way of liquidated damages
- (2) If a residential tenancy agreement provides that, on early or punctual payment of rent, the rent will or may be decreased or the tenant will or may be granted or paid a rebate, refund or other benefit, the tenant is entitled to the reduction, rebate, refund or other benefit in any event.
- (3) If a residential tenancy agreement contains a provision to which this section applies, the landlord is guilty of an offence.

Duty of mitigation

34. The rules of the law of contract about mitigation of loss or damage on breach of a contract apply to a breach of a residential tenancy agreement.

Preliminary



35. (1) If, as a direct consequence of a tenant being at fault, a landlord reasonably incurs costs or expenses in connection with the residential tenancy agreement, the landlord is entitled to compensation for the costs or expenses.
- (2) The TAP may, on application by the landlord (through the MyLine Tenancy Services), order the tenant to pay to the landlord compensation to which the landlord is entitled under this section.

PART IV

[KAROLO EA BONE]

TERMINATION OF RESIDENTIAL TENANCY AGREEMENTS [PHELETSO EA LITUMELLANO TSA BOLULO]

Termination generally

Termination of residential tenancy

36. A residential tenancy terminates if—
- (a) the landlord or the tenant terminates the tenancy by notice of termination given to the other (through the MyLine Tenancy Services as required under this code);
 - (b) the TAP terminates the tenancy;
 - (c) person having title superior to the landlord's title becomes entitled to possession of the premises under the order of the TAP or a court¹;
 - (d) a mortgagee takes possession of the premises under a mortgage;
 - (e) the tenancy terminates by force of a notice to vacate issued (through the MyLine Tenancy Services) in respect of the premises;
 - (f) the tenant abandons the premises;
 - (g) the tenant dies without leaving dependants in occupation of the premises;
 - (h) the tenant gives up possession of the premises without the landlord's consent;
 - (i) the interest of the tenant merges with another estate or interest in a land;
 - (j) disclaimer of the tenancy occurs

Agreement for fixed term continues if not terminated

[Tumellano ea nako e telele etsoelang pele ha esa felisoa]

37. (1) If a residential tenancy agreement for a fixed term has not terminated before the end of the fixed term or at the end of the fixed term by notice of termination under section 41 or 47, the agreement continues— [Ha ebe tumellano ea bolulo ea nako e telele esa fela pele nako ea tumellano e telele e fela kapa tlhokomeliso ea ho fela hoa tumellano ea nako e telele tlasa temana ea 41 kapa 47, tumellano e tsoela pele—]
- (a) as a residential tenancy agreement for a periodic tenancy with a tenancy period equivalent to the interval between rental payment times under the agreement; [Ka tumellano ea bolulo ea nako e khutsoane le makhetlo a nako ea bolulo a ho patala rente tlasa tumellano;]



- (b) with terms of agreement that in other respects are the same as those applying under the agreement immediately before the end of the fixed term [Ka lipehelo tsa tumellano tseo litšoanang letse sebetsang tlasa tumellano hang pele ho pheletso ea nako e telele]
- (2) This section does not apply in relation to a residential tenancy agreement to which section 4 applies [Temana eena ha e sebetse moo tumellano ea bolulo tlasa temana ea 4 ea tokomane eena ea tsamaiso (Tenancy Code) e sebetsang]

Termination by the landlord

Notice of termination by landlord on ground of breach of agreement

- 38. If the tenant breaches a residential tenancy agreement, the landlord (through the MyLine Tenancy Services) may give the tenant a written notice—
 - (a) specifying the breach;
 - (b) informing the tenant that if the breach is not remedied within a specified period (which must be a period of at least 7 days) from the date the notice is given then—
 - (i) the tenancy is terminated by force of the notice;
 - (ii) the tenant must give up possession of the premises on or before a day specified in the notice (which, subject to subsection (2)(c), must be at least 7 days after the end of the period allowed for the tenant to remedy the breach).
- (2) If notice is given under this section on the ground of a failure to pay rent—
 - (a) the notice is ineffectual unless the rent (or any part of the rent) has remained unpaid in breach of the agreement for not less than 14 days before the notice was given;
 - (b) the notice is not rendered ineffectual by failure by the landlord to make a prior formal demand for payment of the rent;
 - (c) the day specified in the notice for the tenant to give up possession of the premises if the rent is not paid in accordance with the terms of the notice can be any day after the day on which the tenancy is terminated under the notice;
 - (d) if the tenant gives up possession of the premises—
 - (i) the landlord is entitled to compensation for any loss (including loss of rent) caused by the termination of the tenancy (but the landlord must take reasonable steps to mitigate any loss and is not entitled to compensation for loss that could have been avoided by those steps);
 - (ii) the TAP may, on application by the landlord (through the MyLine Tenancy Services), order the tenant to pay to the landlord compensation to which the landlord is entitled under this paragraph
- (3) If notice is given under this section in respect of a residential tenancy agreement that creates a tenancy for a fixed term, the notice is not ineffectual because the day specified as the day on which the tenant is to give up possession of the premises is earlier than the last day of that term.
- (4) The tenant may at any time after receiving a notice under this section and before giving vacant possession to the landlord, apply to the MyLine Tenancy Services for an order—



- (a) declaring that the tenant is not in breach of the residential tenancy agreement, or has remedied the breach of the agreement, and that the tenancy is not liable to be terminated under this section;
 - (b) reinstating the tenancy
- (5) If the MyLine Tenancy Services or the TAP is satisfied that a tenancy has been validly terminated under this section, but that it is just and equitable to reinstate the tenancy (or would be just and equitable to reinstate the tenancy if the conditions of the order were complied with), the MyLine Tenancy Services or the TAP may make an order reinstating the tenancy.
- (6) An order reinstating the tenancy under this section may be made on conditions that the MyLine Tenancy Services and/or the TAP considers appropriate.
- (7) On an application for an order reinstating the tenancy, the MyLine Tenancy Services and/or the TAP may make alternative orders providing for reinstatement of the tenancy if specified conditions are complied with but, if not, ordering the tenant to give up possession of the premises to the landlord.

Termination because possession is required by landlord for certain purposes

39. (1) A landlord may, by notice of termination given to the tenant, terminate a periodic residential tenancy on the ground that—
- (a) the landlord requires possession of the premises for demolition
 - (b) the landlord requires possession of the premises for repairs or renovations that cannot be carried out conveniently while the tenant remains in possession of the premises
 - (c) the landlord requires possession of the premises for
 - (i) the landlord's own occupation
 - (ii) occupation by the landlord's spouse, child or parent
 - (iii) occupation by the landlord's family member
 - (d) the landlord has entered into a contract for the sale of the premises under which the landlord is required to give vacant possession of the premises;
 - (e) the landlord requires possession of the premises for a purpose prescribed by regulation
- (2) The period of notice given under this section must be at least 60 days or a period equivalent to a single period of the tenancy (whichever is the longer)
- (3) A person must not falsely state the ground of termination in a notice of termination given, or purportedly given, under this section.
- (4) A landlord who recovers possession of premises under this section must not, without the consent of the MyLine Tenancy Services, grant a fresh tenancy over the premises within 6 months after recovering possession

Termination by landlord without specifying a ground of termination

40. (1) A landlord may, by notice of termination given to the tenant, terminate the tenancy without specifying a ground of termination after discussing the matter with the MyLine Tenancy Services.
- (2) However—
- (a) a tenancy cannot be terminated under this section if—
 - (i) it is for a fixed term;
 - (ii) a housing assessment order, housing improvement order, housing demolition order, preliminary rent control notice or rent control notice applies in respect of the premises;
- (3) The period of notice under this section must be at least 90 days.



Notice to be given at end of fixed term

41. (1) A landlord may, by notice of termination given to the tenant, terminate a residential tenancy agreement for a fixed term at the end of the fixed term without specifying a ground of termination after discussing the matter with the MyLine Tenancy Services.
- (2) The period of notice under this section must be at least 28 days.

Termination where agreement frustrated

42. (1) A landlord may, by notice of termination given to the tenant (through the MyLine Tenancy Services), terminate a residential tenancy agreement on the ground that, otherwise than as a result of a breach of the agreement, the premises or a substantial portion of the premises—
- (a) have been destroyed or rendered uninhabitable;
 - (b) have ceased to be lawfully usable for residential purposes;
 - (c) have been acquired by compulsory process
- (2) A notice given under subsection (1)(a) or (b) may terminate the agreement immediately.
- (3) A notice given under subsection (1)(c) must provide for a period of notice of at least 60 days

Limitation of right to terminate

43. (1) If—
- (a) premises to which a residential tenancy agreement applies—
 - (i) have, within the preceding 6 months, been the subject of an inspection by the MyLine Tenancy Services in connection with the administration or enforcement of this code;
 - (ii) are subject to a housing assessment order, housing improvement order, housing demolition order, preliminary rent control notice or rent control notice;
- (2) The MyLine Tenancy Services may authorise a notice of termination under this section if satisfied of the genuineness of the proposed ground on which the notice is to be given.
- (3) This section does not apply to a notice of termination given by the landlord—
- (a) to terminate a residential tenancy agreement for a fixed term at the end of the fixed term;
 - (b) for a failure to pay rent lawfully owed to the landlord
- (4) This section does not apply if a notice to vacate applies in respect of the premises.

Termination by tenant

Notice of termination by tenant on ground of breach of the agreement

44. (1) If the landlord breaches a residential tenancy agreement, the tenant may give the landlord (through the MyLine Tenancy Services) a written notice—
- (a) specifying the breach;
 - (b) informing the landlord that if the breach is not remedied within a specified period (which must be a period of at least 7 days) from the date the notice is given the tenancy is terminated by force of the notice from a date that is also specified in the notice (which must be at least 7 days after the end of the period allowed for the landlord to remedy the breach).
- (2) The landlord may, before the time fixed in the tenant's notice for termination of the tenancy or the tenant gives up possession of the premises (whichever is the later), apply to the MyLine Tenancy Services for an order—



- (a) declaring that the landlord is not in breach of the residential tenancy agreement, or has remedied the breach of the agreement, and that the tenancy is not liable to be terminated under this section;
- (b) reinstating the tenancy
- (3) If the MyLine Tenancy Services is satisfied that a tenancy has been validly terminated under this section, but that it is just and equitable to reinstate the tenancy (or would be just and equitable to reinstate the tenancy if the conditions of the order were complied with), the MyLine Tenancy Services may make an order reinstating the tenancy.
- (4) An order reinstating the tenancy under this section may be made on conditions that the MyLine Tenancy Services considers appropriate

Termination by tenant if residential premises for sale

- 45. (1) The tenant under a residential tenancy agreement may, by notice of termination given to the landlord (through the MyLine Tenancy Services), terminate the tenancy if—
 - (a) within 2 months after the start of the agreement, the landlord enters into a contract for the sale of the residential premises;
- (2) A notice of termination under subsection (1) must, if the landlord has given written notice advising the tenant of the contract for the sale of the residential premises, be given to the landlord within 2 months after the day on which the notice was given to the tenant.

Termination by tenant without specifying a ground of termination

- 46. (1) The tenant under a residential tenancy agreement for a periodic tenancy may, by notice of termination given to the landlord, terminate the tenancy without specifying a ground of termination
- (2) The minimum period of notice under this section is 21 days.

Notice to be given at end of fixed term

- 47. (1) The tenant under a residential tenancy agreement for a fixed term may, by notice of termination given to the landlord (through the MyLine Tenancy Services) terminate the tenancy at the end of the fixed term without specifying a ground of termination.
- (2) The period of notice under this section must be at least 28 days.

Termination where agreement frustrated

- 48. (1) A tenant may, by notice of termination given to the landlord, terminate a residential tenancy agreement on the ground that, otherwise than as a result of a breach of the agreement, the premises or a substantial portion of the premises—
 - (a) have been destroyed or rendered uninhabitable;
 - (b) have ceased to be lawfully usable for residential purposes;
 - (c) have been acquired by compulsory process
- (2) A notice given under subsection (1) may terminate the agreement immediately.

Termination by the MyLine Tenancy Services and/or by the Tenancy Administrative Parties (TAP)

Termination on application by landlord



49. (1) The MyLine Tenancy Services may, on application by a landlord, terminate a residential tenancy and make an order for possession of the premises if satisfied that—
- (a) the tenant has committed a breach of the residential tenancy agreement;
 - (b) the breach is sufficiently serious to justify termination of the tenancy¹
- (2) The MyLine Tenancy Services may, on application by a landlord, terminate a residential tenancy and make an order for possession of the premises if satisfied that—
- (a) the tenant has failed to pay rent in breach of the residential tenancy agreement;
 - (b) on at least 2 occasions in the 12 month period preceding the breach—
 - (i) the tenant was given a notice under section 80 of a breach of the agreement on the ground of a failure to pay rent;
 - (ii) the notice was not ineffectual within the meaning of section 38(2)
- (3) On an application under subsection (2), the MyLine Tenancy Services may make alternative orders providing for the tenant to comply with specified conditions in relation to the payment of rent under the agreement.
- (4) The MyLine Tenancy Services may, on application by a landlord, terminate a residential tenancy and make an order for immediate possession of the premises if the tenant or a person permitted on the premises with the consent of the tenant has, intentionally or recklessly, caused or permitted, or is likely to cause or permit—
- (a) serious damage to the premises;
 - (b) personal injury to—
 - (i) the landlord;
 - (ii) a person in the vicinity of the premises

Termination on application by tenant

50. The MyLine Tenancy Services may, on application by a tenant, terminate a residential tenancy and make an order for possession of the premises if satisfied that—
- (a) the landlord has committed a breach of the residential tenancy agreement;
 - (b) the breach is sufficiently serious to justify termination of the tenancy¹

Termination based on hardship

51. (1) If the continuation of a residential tenancy would result in undue hardship to the landlord or the tenant, the MyLine Tenancy Services may, on application by the landlord or the tenant, terminate the agreement from a date specified in the Masquare and TAP assistance order and make an order for possession of the premises as from that day. [Ha ebe tumellano ea bolulo e ntse e tsoelapele eka tsoala litholoana tse bosula kapa tse seng monate ho mohirisi kapa mohiri, MyLine Tenancy Services seka, ka kopo ea mohirisi kapa mohiri, ho felisa tumellano ho tloha letsatsi le boletsoeng ke MyLine Tenancy Services ka tataisos kapa thuso ea taelo ea mahlakore a mang a tsamaiso (TAP) ebile ho etsa taelo ea hore ho fanoe ka taolo ea matlo a bolulo hotloha letsatsi leo le boletsoeng]
- (2) The MyLine Tenancy Services may also make an order compensating a landlord or tenant for loss and inconvenience resulting, or likely to result, from the early termination of the tenancy. [MyLine Tenancy Services mohlomong seka etsa taelo ea ho tšilisa mohirisi kapa mohiri ka tahlehelo kapa tšenyō eo e hlahleng pejana ho felisoa bolulo.]

Termination based on domestic abuse



52. (1) The MyLine Tenancy Services may, on application by a tenant or a co-tenant, terminate a residential tenancy from a date specified in the MyLine Tenancy Services' order if satisfied—
- (a) that an intervention order is in force against a person who resides at the residential premises for the protection of—
 - (i) the applicant;
 - (ii) a domestic associate of the applicant who normally or regularly resides at the residential premises;
 - (b) that a person who resides at the residential premises has committed domestic abuse against—
 - (i) the applicant;
 - (ii) a domestic associate of the applicant who normally or regularly resides at the residential premises
- (2) The MyLine Tenancy Services may, on application by the TAP, terminate a residential tenancy from a date specified in the MyLine Tenancy Services' order if satisfied—
- (a) that an intervention order is in force against a tenant for the protection of a person who normally or regularly resides at the residential premises;
 - (b) that a tenant has committed domestic abuse against a person who normally or regularly resides at the residential premises
- (3) For the purposes of an application under this section, the applicant, the landlord and any tenant or co-tenant under the residential tenancy agreement are parties to proceedings concerning the tenancy dispute.
- (4) The MyLine Tenancy Services may, on application by a party to proceedings under this section, make 1 or more of the following additional orders:
- (a) subject to this section, an order requiring the landlord to enter into a new residential tenancy agreement with the applicant or a co-tenant under the terminated agreement (or both) for the remainder of the term of the tenancy;
 - (b) an order that the landlord may enter the residential premises at a time determined by the MyLine Tenancy Services to inspect the premises before a determination is made under this section;
 - (c) an order for possession of the premises on a date specified by the MyLine Tenancy Services;
 - (d) if the MyLine Tenancy Services is satisfied that—
 - (i) the applicant did not cause or reasonably cause a breach of the residential tenancy agreement;
 - (ii) the nature of any breach of the residential tenancy agreement resulted from an act of abuse or domestic abuse against the applicant, an order that the landlord, landlord's agent or a database operator must not list the applicant's personal information in a residential tenancy database under section 72(1)
- (5) The MyLine Tenancy Services must not make an order under subsection (4)(a) requiring the landlord to enter into a new residential tenancy agreement with a co-tenant who is—
- (a) the person referred to in subsection (1)(a) against whom an intervention order is in force;
 - (b) the person referred to in subsection (1)(b) whom the MyLine Tenancy Services is satisfied has committed domestic abuse against an applicant or a domestic associate of the applicant who normally or regularly resides at the residential premises, if the landlord indicates, as part of proceedings before the MyLine Tenancy Services and the TAP, that the landlord considers it would be unreasonable for such an order to be made
- (6) Before making an order under subsection (4)(a), the TAP must be satisfied—
- (a) that any tenant or co-tenant under the new residential tenancy agreement could reasonably be expected to comply with the obligations under the agreement;



- (7) If the landlord or any co-tenant objects to an application for the making of an order under subsection (1) or (4)(a), the MyLine Tenancy Services must not make the order unless satisfied that the hardship likely to be suffered by the applicant or a domestic associate of the applicant who normally or regularly resides at the residential premises would, if the order were not made, be greater than any hardship likely to be suffered by the objector as a consequence of the making of the order.
- (8) A new residential tenancy agreement entered into by order of the MyLine Tenancy Services under subsection (4)(a) must be on the same terms and conditions as the terminated tenancy agreement, subject to any changes determined by the MyLine Tenancy Services.
- (9) If a residential tenancy is terminated under this section because of an intervention order in force against a co-tenant under the residential tenancy agreement, or because a co-tenant under the agreement has committed domestic abuse, the MyLine Tenancy Services may order the co-tenant to make a payment of compensation to the landlord for loss and inconvenience resulting, or likely to result, from the termination of the tenancy or from any additional order made under subsection (4).
- (10) If the MyLine Tenancy Services finds, in relation to a residential tenancy that is terminated under this section, that 1 or more, but not all, of the co-tenants under the residential tenancy agreement are responsible for damage to the residential premises or ancillary property, the MyLine Tenancy Services may determine that the responsible co-tenant or co-tenants are liable for making any payment of compensation ordered under this section.
- (11) If 1 or more, but not all, of the co-tenants under a residential tenancy agreement are liable under subsection (10) or (11) for making a payment of compensation, the following provisions apply:
 - (a) the MyLine Tenancy Services may give a direction under this section that the charge fee (if any) be paid to the landlord and any co-tenant who is not liable for making the payment in such proportions as the MyLine Tenancy Services thinks fit;
 - (b) a direction under paragraph (a) may not operate to limit the amount of charge fee payable to a landlord under this section

MyLine Tenancy Services and/or the TAP may terminate tenancy if tenant's conduct unacceptable

53. (1) The MyLine Tenancy Services may, on application by an interested person, terminate a residential tenancy and make an order for possession of the premises if it is satisfied that the tenant has—
- (a) used the premises, or caused or permitted the premises to be used, for an illegal purpose;
 - (b) caused or permitted a nuisance;
 - (c) caused or permitted an interference with the reasonable peace, comfort or privacy of another person who resides in the immediate vicinity of the premises
- (2) If the MyLine Tenancy Services terminates a tenancy and makes an order for possession under this section—
- (a) the MyLine Tenancy Services must specify the day as from which the order will operate, being not more than 28 days after the day on which the orders are made;
 - (b) the MyLine Tenancy Services may order the landlord—
 - (i) to take such action as is specified in the order for the purpose of taking possession of the premises;
 - (ii) not to permit the tenant to occupy the premises (whether as a tenant or otherwise) for a specified period or until further order (and any agreement entered into in contravention of such an order is void)
- (3) However—



- (a) the MyLine Tenancy Services must not make an order under this section unless the landlord has been given a reasonable opportunity to be heard in relation to the matter;
 - (b) if the landlord objects to the making of an order under this section, the MyLine Tenancy Services must not make an order unless the MyLine Tenancy Services is satisfied that exceptional circumstances exist justifying the making of the order in any event
- (4) In this section—
- Interested person** means—
- (a) the landlord;
 - (b) a person who has been adversely affected by the conduct of the tenant on which the application is based;
 - (c) a strata corporation or community corporation representing the interests of persons who have been adversely affected by the conduct of the tenant on which the application is based;
 - (d) a police officer;
 - (e) an authorised officer within the meaning
- (5) If an application relating to a tenant is, or is to be, made under this section by an authorised officer, the authorised officer may refer the application to the TAP.
- (6) As soon as reasonably practicable following referral of an application under subsection (4), the TAP must make available to the authorised officer information to which the TAP has access relevant to the application (unless the TAP considers there is good reason for withholding the information).

Notices of termination

Form of notice of termination

54. (1) A notice of termination given by a landlord (through the MyLine Tenancy Services) to a tenant must—
- (a) be in writing;
 - (b) be signed by the landlord
 - (c) state the address of the premises (and system code) subject to the tenancy;
 - (d) state the day on which the tenant is required to give up vacant possession of the premises to the landlord;
 - (e) if the tenancy is to be terminated on a particular ground—specify and give reasonable particulars of the ground of termination;
 - (f) include any further information required
- (2) A notice of termination given by a tenant (through the MyLine Tenancy Services) to a landlord must—
- (a) be in writing;
 - (b) be signed by the tenant;
 - (c) state the address of the premises (and system code) subject to the tenancy;
 - (d) state the day on which the tenant is to give up vacant possession of the premises to the landlord;
 - (e) if the tenancy is to be terminated on a particular ground—specify and give reasonable particulars of the ground of termination;
 - (f) include any further information required

Termination of periodic tenancy



55. A notice terminating a periodic tenancy under this code is not ineffectual because—
- (a) the period of notice is less than would;
 - (b) the day on which the tenancy is to end is not the last day of a period of the tenancy

Preliminary

56. If—
- (a) a notice of termination is given to a landlord or tenant;
 - (b) the tenant has not given up vacant possession of the residential premises to the landlord within 1 month after the day on which he or she is to do so in accordance with the notice;
 - (c) the landlord has not, within that period, applied to the MyLine Tenancy Services for an order for possession of the premises, the notice of termination is ineffectual and the residential tenancy will be taken not to have been terminated

Repossession of premises

Order for possession

57. (1) If a residential tenancy is terminated by notice of termination under this Code or, under the residential tenancy agreement, the landlord may apply to the MyLine Tenancy Services for an order for possession of the premises.
- (2) If the MyLine Tenancy Services is satisfied that the tenancy has been terminated, the MyLine Tenancy Services may make an order for possession of the premises.
- (3) The order for possession will take effect on a date specified by the MyLine Tenancy Services in the order, being a date not more than 7 days after the date of the order unless the operation of the order for possession is suspended
- (4) However, if the MyLine Tenancy Services, although satisfied that the landlord is entitled to an order for possession of the premises, is satisfied by the tenant that the grant of an order for immediate possession of the premises would cause severe hardship to the tenant, the MyLine Tenancy Services may—
- (a) suspend the operation of the order for possession for up to 90 days;
 - (b) extend the operation of the residential tenancy agreement until the landlord obtains vacant possession of the premises from the tenant
- (5) In extending the operation of the residential tenancy agreement, the MyLine Tenancy Services may make modifications to the agreement that it considers appropriate (but the modifications cannot reduce the tenant's financial obligations under the agreement).
- (6) If the tenant fails to comply with an order for possession, the landlord is entitled to compensation for any loss caused by that failure.
- (7) The MyLine Tenancy Services may, on application by the landlord, order the tenant to pay to the landlord compensation to which the landlord is entitled under subsection (5).

Abandoned premises

58. (1) The MyLine Tenancy Services may, on application by a landlord—
- (a) declare that a tenant abandoned premises on a day stated in the declaration;
 - (b) make an order for immediate possession of the premises
- (2) In determining whether a tenant has abandoned premises, the MyLine Tenancy Services may have regard to—
- (a) any failure by the tenant to pay rent or to carry out obligations under the residential tenancy agreement;



- (b) any evidence suggesting that the tenant no longer occupies the premises as a place of residence;
 - (c) any other matter the MyLine Tenancy Services thinks fit for abandonment
- (3) A tenant is taken to have abandoned the premises on the day stated in a declaration under this section.
- (4) If a tenant has abandoned premises, the landlord is entitled to compensation for any loss (including loss of rent) caused by the abandonment.
- (5) However, the landlord must take reasonable steps to mitigate any loss and is not entitled to compensation for loss that could have been avoided by those steps.
- (6) The MyLine Tenancy Services may, on application by the landlord, order the tenant to pay to the landlord compensation to which the landlord is entitled under this section.

Repossession of premises

59. A person must not enter premises for the purpose of taking possession of the premises before, or after, the end of a residential tenancy unless—
- (a) the tenant abandons, or voluntarily gives up possession of, the premises;
 - (b) the person is authorised to take possession of the premises by force of a notice to vacate issued in respect of the premises;
 - (c) the person is authorised to take possession of the premises under the order of a court or the TAP

Forfeiture of head tenancy not to result automatically in destruction of right to possession under residential tenancy agreement

60. (1) A person cannot take possession of residential premises subject to a residential tenancy agreement so as to defeat the tenant's right to possession under the residential tenancy agreement unless an order for possession of the premises is made by a court or the TAP.
- (2) An order under subsection (1) must be served on the tenant and takes effect—
- (a) in the case of an order made in favour of a mortgagee—30 days after the day on which it is served or at such later time as is specified by the court or the TAP;
 - (b) in any other case—at such time as is specified by the court or the TAP
- (3) If an order of a kind referred to in subsection (2)(a) is made, the tenant—
- (a) is not required to pay any rent, fee or other charge in respect of his or her occupation of the residential premises in the period following service of the order;
 - (b) is entitled to compensation for any rent paid in respect of that period
- (4) The MyLine Tenancy Services may, on application by the tenant, order a person to whom rent has been paid to pay to the tenant compensation to which the tenant is entitled under subsection (3).
- (5) If a person is entitled to possession of residential premises as against a person who granted a residential tenancy, a court before which proceedings for possession of the premises are brought, or the TAP, may, on application by an interested person, vest the residential tenancy agreement in the person who would, but for the agreement, be entitled to possession of the premises so that the tenant holds the premises directly from that person as landlord.
- (6) An order may be made under subsection (5) on terms and conditions the court or TAP considers just.



Abandoned property

Abandoned property

61. (1) This section applies to property (**abandoned property**) that is left on residential premises by a tenant after termination of a residential tenancy agreement.
- (2) Nothing in this section affects any obligation a landlord may have in relation to property left on the premises under this code.

Offence to deal with abandoned property in unauthorized way

62. A landlord must not deal with abandoned property otherwise than in accordance the MyLine Tenancy Services

Action to deal with abandoned property other than personal documents

63. (1) This section applies to abandoned property other than personal documents.
- (2) The landlord may, at any time after recovering possession of the premises, remove from the premises and destroy or dispose of abandoned property consisting of perishable goods.
- (3) The landlord must, within the period of 2 days after recovering possession of the premises, allow the tenant access to the premises to reclaim abandoned property.
- (4) The landlord may, when at least 2 days have passed after recovering possession of the premises, remove from the premises and destroy or dispose of abandoned property, other than perishable goods, if the value of the property is less than a fair estimate of the cost of removal, storage and sale of the property.
- (5) If there is abandoned property (other than personal documents) on the premises that may not be dealt with under subsection (2) or (3) (**valuable abandoned property**), the landlord must—
- (a) as soon as practicable, make reasonable attempts to notify the tenant that such property has been found on the premises;
- (b) take reasonable steps to keep the property safe until at least 28 days after possession of the premises is recovered
- (6) A person who is entitled to possession of valuable abandoned property may reclaim the property by paying to the landlord the reasonable costs incurred by the landlord in dealing with the property in accordance with this section and any other reasonable costs incurred by the landlord as a result of the property being left on the premises.
- (7) If valuable abandoned property is not reclaimed within the period of 28 days referred to in subsection (4)(b), the landlord may, subject to the regulations, sell or otherwise lawfully dispose of the property (as if the landlord were the owner of the property).
- (8) If valuable abandoned property is sold in accordance with this section, or if any other abandoned property is sold by the landlord, the landlord—
- (a) may retain out of the proceeds of sale—
- (i) the reasonable costs incurred by the landlord in dealing with the property in accordance with this section and any other reasonable costs incurred by the landlord as a result of the property being left on the premises;
- (ii) any amounts owed to the landlord under the residential tenancy agreement;
- (9) If a dispute arises between a landlord and tenant about the exercise of powers conferred by this section, the TAP may, on application by either party to the dispute, make orders resolving the matters in dispute.

Action to deal with abandoned personal documents



64. (1) This section applies to abandoned property consisting of personal documents.
- (2) The landlord must—
- (a) as soon as practicable, make reasonable attempts to notify the tenant that the documents have been found on the premises;
 - (b) take reasonable steps to keep the documents safe until at least 28 days after possession of the premises is recovered
- (3) If the personal documents are not reclaimed by the tenant within the 28 day period referred to in subsection (2)(b), the landlord may destroy or dispose of the documents.
- (4) Subsection (3) applies subject to any legislation relating to the preservation of records.

Enforcement of orders for possession

Enforcement of orders for possession

65. (1) If an order for possession of premises is made by the MyLine Tenancy Services and the person in whose favour the order was made advises the MyLine Tenancy Services, within 14 days of the day on which the order takes effect or such longer period as the MyLine Tenancy Services may allow, that the order has not been complied with—
- (a) the order is enforceable by a TAP member (and, subject to subsection (3), only by a TAP member);
 - (b) the TAP must enforce the order as soon as is practicable after the MyLine Tenancy Services is advised that it has not been complied with
- (2) A TAP member enforcing an order for possession of premises may enter the premises, ask questions and take all steps as are reasonably necessary for the purpose of enforcing the order
- (3) A police officer must, if requested by the TAP, assist the TAP in enforcing an order for possession.
- (4) In the exercise of the powers conferred by this section the TAP may use the force that is reasonable and necessary in the circumstances.
- (5) A person must not hinder or obstruct the TAP in the exercise of the powers conferred by this section.
- (6) A person questioned pursuant to this section must not refuse or fail to answer the question to the best of his or her knowledge, information and belief.
- (7) However, a person is not obliged to answer a question under this section if to do so might tend to incriminate the person or to make the person liable to a penalty, or would require the disclosure of information that is privileged under the principles of legal professional privilege.

PART V

RESIDENTIAL TENANCY DATABASES

Definitions

66. In this section—
- MyLine Tenancy Services** of a landlord means a person employed, or otherwise authorised, by the landlord;
- Database** means a system the MyLine Tenancy Services will use for storing & processing information, whether electronically or in some other form;
- Database operator** means the MyLine Tenancy Services that operates a residential tenancy database;



Inaccurate, in relation to personal information in a residential tenancy database, includes information that is inaccurate because—

- (a) the information indicates that the person owes a landlord an amount that is more than the charge for a residential tenancy agreement;
- (b) the amount owed was paid to the landlord more than 3 months after the amount became due;

List personal information in a residential tenancy database means—

- (a) enter the personal information into the database;
- (b) give the personal information to a database operator or someone else for entry into the database, and includes amend personal information about a person in the database to include additional personal information about the person;

Out of date, in relation to personal information in a residential tenancy database, means the information is no longer accurate because—

- (a) for a listing made on the basis the person owes a landlord an amount that is more than the charge for a residential tenancy agreement—the amount owed was paid to the landlord within 3 months after the amount became due;
- (b) for a listing made on the basis the TAP has made an order terminating the residential tenancy agreement—the order has been set aside, varied or quashed on review or appeal;

Personal information means information (including an individual's name) or an opinion, whether true or not, about an individual whose identity is apparent, or can reasonably be ascertained, from the information or opinion;

Residential tenancy database means a database—

- (a) containing personal information—
 - (i) relating to, or arising from, the occupation of residential premises under a residential tenancy agreement;
 - (ii) entered into the database for reasons relating to, or arising from, the occupation of residential premises under a residential tenancy agreement;
- (b) with an intended purpose of use by landlords for checking a person's tenancy history for deciding whether a residential tenancy agreement should be entered into with the person

Application

67. This section applies to a residential tenancy database kept by the MyLine Tenancy Services for use only by it or its officers, employees or agents under the Lesotho Data Protection Act Nō 5 of 2012.

Notice of usual use of database

68. (1) This section applies if—
- (a) a person (the **applicant**) applies to a landlord, whether or not through the MyLine Tenancy Services, to enter into a residential tenancy agreement;
 - (b) the landlord or, if the application is made through the MyLine Tenancy Services, the landlord or the MyLine Tenancy Services usually uses 1 or more residential tenancy databases for deciding whether a residential tenancy agreement should be entered into with a person.
- (2) The landlord or the MyLine Tenancy Services must, when the application is made, give the applicant a written notice stating the following:
- (a) the landlord and potential tenant's system codes, or may use, for deciding whether a residential tenancy agreement should be entered into with a person
 - (b) that the reason the landlord or the MyLine Tenancy Services uses a residential tenancy database mentioned in paragraph (a) is for checking an applicant's tenancy history



- (c) for each residential tenancy database mentioned in paragraph (a), how persons may contact the database operator who operates the database and obtain information from the operator
- (3) Subsection (2) applies in relation to a residential tenancy database whether or not the landlord or the MyLine Tenancy Services intends to use the database for deciding whether a residential tenancy agreement should be entered into with the applicant.
- (4) However, the landlord or the MyLine Tenancy Services is not required to give the written notice mentioned in subsection (2) if a written notice stating the matters mentioned in the subsection was given to the applicant not more than 7 days before the application was made.

Notice of listing if database used

69. (1) This section applies if—
- (a) a person (the **applicant**) applies to a landlord, whether or not through the MyLine Tenancy Services, to enter into a residential tenancy agreement;
 - (b) the landlord or, if the application is made through the MyLine Tenancy Services, the landlord or uses a residential tenancy database for checking whether personal information about the applicant is in the database;
 - (c) personal information about the applicant is in the database
- (2) The landlord or MyLine Tenancy Services must, as soon as possible but within 7 days after using the database, give the applicant a written or verbal notice stating—
- (a) the name of the database;
 - (b) that personal information about the applicant is in the database;
 - (c) the name of each person who listed the personal information in the database;
 - (d) how and in what circumstances the applicant can have the personal information removed or amended under this section
- (3) However, subsection (2)(c) requires the written or verbal notice to state the name of a person only if the person is identified in the residential tenancy database as the person who listed the personal information in the database.

Listing can be made only for particular breaches by particular persons

70. (1) A landlord or the MyLine Tenancy Services may only list personal information about a person in a residential tenancy database if—
- (a) the person was named as a tenant in a residential tenancy agreement that has ended;
 - (b) the person has breached the agreement;
 - (c) because of the breach, either—
 - (i) the person owes the landlord an amount that is more than the charge for the agreement;
 - (ii) the TAP has made an order terminating the residential tenancy agreement;
 - (d) the personal information—
 - (i) relates only to the breach;
 - (ii) is accurate, complete and unambiguous;
 - (e) the TAP has not made an order under section 52(4)(d) prohibiting the listing
- (2) Without limiting subsection (1)(d)(ii), the personal information must indicate the nature of the breach.

Further restriction on listing



71. (1) A landlord or the MyLine Tenancy Services must not list personal information about a person in a residential tenancy database unless the landlord or MyLine Tenancy Services—
- (a) has, without charging a fee—
 - (i) given the person a copy of the personal information;
 - (ii) taken other reasonable steps to disclose the personal information to the person;
 - (b) has given the person at least 14 days to review the personal information and make submissions—
 - (i) objecting to its entry into the database;
 - (ii) about its accuracy, completeness and clarity;
 - (c) has considered any submissions made
- (2) Subsection (1) does not apply if the landlord or the MyLine Tenancy Services cannot locate the person after making reasonable enquiries.
- (3) Subsection (1)(b) and (c) do not apply—
- (a) to information that, at the time of the listing, is contained in publicly available court or TAP records;
 - (b) to a listing involving only an amendment of personal information about a person under section 72

Ensuring quality of listing—landlord's or MyLine Tenancy Services' obligation

72. (1) This section applies if a landlord or the MyLine Tenancy Services who lists personal information in a residential tenancy database becomes aware that the information is inaccurate, incomplete, ambiguous or out of date.
- (2) The landlord or the MyLine Tenancy Services must, within 7 days, give written notice of the following to the database operator who keeps the database:
- (a) if the information is inaccurate, incomplete, or ambiguous—
 - (i) that the information is inaccurate, incomplete or ambiguous;
 - (ii) how the information must be amended so that it is no longer inaccurate, incomplete or ambiguous
 - (b) if the information is out of date—that the information is out of date and must be removed
- (3) The landlord or the MyLine Tenancy Services must keep a copy of the written notice for 1 year after it was given under subsection (2).

Ensuring quality of listing—database operator's obligation

73. (1) This section applies if a landlord or the MyLine Tenancy Services who has listed personal information in a tenancy database gives the database operator who operates the database a written notice stating that the personal information must be—
- (a) amended in a stated way to make it accurate, complete and unambiguous;
 - (b) removed
- (2) The MyLine Tenancy Services must amend the personal information in the stated way, or remove the personal information, within 14 days after the operator is given the written notice.

Providing copy of personal information listed

74. (1) A landlord or the MyLine Tenancy Services who lists personal information about a person in a residential tenancy database must, if asked in writing by the person, give the person a copy of the information within 14 days after the request is made.



- (2) The MyLine Tenancy Services must, if asked in writing by a person whose personal information is in the residential tenancy database kept by the MyLine Tenancy Services, give the person a copy of the information within 14 days after the request is made.
- (3) If the MyLine Tenancy Services charges a fee for giving personal information under subsection (1), or the MyLine Tenancy Services charges a fee for giving personal information under subsection (2), the subsection applies only if the fee has been paid.
- (4) A fee charged by the MyLine Tenancy Services for giving personal information under subsection (1), or by giving personal information under subsection (2)—
 - (a) must not be excessive;
 - (b) must not apply to lodging a request for the information

Keeping personal information listed

75. (1) The MyLine Tenancy Services must not keep personal information about a particular person in the residential tenancy database for longer than—
 - (a) 3 months after a tenant lodges a request to be put out of the system;
 - (b) if, under the national privacy principles, the MyLine Tenancy Services of the database is required to remove the personal information before the end of the 3 month(s) period mentioned in paragraph (a)—the period ending when the information must be removed under the national privacy principles
- (2) However, the MyLine Tenancy Services may keep the person's name in the MyLine Tenancy Services 's residential tenancy database for longer than the period stated in subsection (1)(a) or (b) if—
 - (a) other personal information about the person in the database is attached to the name;
 - (b) the other personal information is not required to be removed under subsection (1) or another law
- (3) This section does not limit the operation of another provision of this Part or any other law that requires the removal of the personal information.
- (4) In this section—

National privacy principles means the principles stated in the *Data Protection Act Nō 5 of 2012* of the Lesotho Parliament.

Powers of the Local Council

76. (1) The Local Council may, on the application of the or a person whose personal information is in a residential tenancy database, make such orders against a landlord or the MyLine Tenancy Services as may be necessary or expedient in the opinion of the Local Council to ensure compliance with this Part or any provision of this Part.
- (2) If the MyLine Tenancy Services commits an offence against this Part, the Local Council may, on the application of the either the Landlord or the Tenant, make an order requiring the MyLine Tenancy Services to comply with conditions specified in the order in relation to a residential tenancy database operated by the MyLine Tenancy Services
- (3) If the MyLine Tenancy Services commits an offence against this Part, the MyLine Tenancy Services may, on the application of the Landlord or the Tenant, make an order requiring the MyLine Tenancy Services to comply with conditions specified in the order in relation to a residential tenancy database operated by the MyLine Tenancy Services.
- (3) An order under subsection (1) or (2) is effective for such period as may be specified in the order or until further order of the Local Council.



Notifying relevant non-parties of the TAP order about listing

77. (1) This section applies if—
- (a) the TAP makes an order that a person must, in relation to a residential tenancy database—
 - (i) amend personal information in a stated way;
 - (ii) remove all or particular personal information about a person;
 - (b) the person against whom the order is made (the **relevant person**) is not a party to the proceedings before the TAP
- (2) The TAP must ensure that a copy of the order is given to the relevant person.

PART VI

DISPUTE RESOLUTION

Conciliation

Definitions

78. In this Section—
- Conciliation** of a dispute includes preliminary assistance in dispute resolution such as the giving of advice to ensure that—
- (a) the parties to the dispute are fully aware of their rights and obligations
 - (b) there is full and open communication between the parties about the dispute;
- Conciliation conference** means a conference called by the TAP under section 79(4).

Conciliation of dispute by TAP

Conciliation of dispute by TAP

79. (1) If a party to a tenancy dispute applies to the TAP for conciliation of the dispute, the TAP may conciliate the dispute.
- (2) A fee prescribed by regulation is payable on an application under subsection (1).
 - (3) Either the Landlord or Tenant may refer an application made to the MyLine Tenancy Services to the TAP for conciliation.
 - (4) The TAP may call a conference of the parties to the dispute for the purpose of attempting to resolve the dispute by agreement.
 - (5) The TAP must notify the parties of the time and place fixed for the conference.
 - (6) If conciliation of a dispute is terminated because it appears to the TAP that it is unlikely that an agreed settlement can be reached within a reasonable time or for any other reason, the TAP must refer the matter to the police for the listing of the matter before them.

Duties and procedure

Functions of the TAP in conciliation of dispute

80. The TAP has the following functions in the conciliation of a tenancy dispute under this Section:



- (a) to seek to identify the issues in dispute and to narrow the range of the dispute
- (b) to encourage the settlement of the dispute by facilitating, and helping to conduct, negotiations between the parties to the dispute
- (c) to promote the open exchange of information relevant to the dispute by the parties
- (d) to provide to the parties information about the operation of this Code relevant to a settlement of the dispute
- (e) to help in the settlement of the dispute in any other appropriate way

Procedure

81. (1) A conciliation conference may, at the discretion of the TAP, be adjourned from time to time.
- (2) Unless the TAP decides otherwise, the conference will be held in private and the TAP may exclude from the conference any person apart from the parties and their representatives.
- (3) The TAP (if not legally qualified) may refer a question of law arising at the conference to a member of the MyLine Tenancy Services who is legally qualified for determination.
- (4) The TAP or a party may terminate a conciliation at any time.
- (5) A settlement to which a party or representative of a party agrees at a conciliation conference is binding on the party provided that it is not inconsistent with this Code.
- (6) The settlement must be put into writing and signed by or for the parties and a copy of the signed settlement must be provided to the MyLine Tenancy Services.
- (7) The MyLine Tenancy Services may make a determination or order to give effect to the settlement.
- (8) The MyLine Tenancy Services representatives have the same protection and immunity as members of the TAP under this Code.

Intervention

Power to intervene

82. (1) The MyLine Tenancy Services may intervene in proceedings before the TAP or a court concerning a tenancy dispute.
- (2) If the TAP intervenes in proceedings the TAP becomes a party to the proceedings and has all the rights (including rights of appeal) of a party to the proceedings.

Powers of the MyLine Tenancy Services

Power of the MyLine Tenancy Services

83. (1) The MyLine Tenancy Services may, on application by a party to a tenancy dispute—
- (a) restrain an action in breach of this Code or a residential tenancy agreement
 - (b) require a person to comply with an obligation under this Code or a residential tenancy agreement
 - (c) order a person to make a payment (which may include compensation) under this Code or a residential tenancy agreement
 - (d) relieve a party to a residential tenancy agreement from the obligation to comply with a provision of the agreement



- (e) terminate a residential tenancy agreement or declare that a residential tenancy agreement has, or has not, been validly terminated;
 - (f) reinstate rights under a residential tenancy agreement that have been forfeited or have otherwise terminated
 - (g) require a tenant to give up the possession of premises to the landlord
 - (h) make orders to give effect to rights and liabilities arising from the assignment of a residential tenancy agreement;
 - (i) exercise any other power conferred on the MyLine Tenancy Services under this Code;
 - (j) do anything else necessary or desirable to resolve a tenancy dispute
- (2) The MyLine Tenancy Services does not have jurisdiction to award compensation for damages arising from personal injury.

Conditional and alternative orders

84. (1) The MyLine Tenancy Services may make orders on conditions the MyLine Tenancy Services considers appropriate.
- (2) The MyLine Tenancy Services may make orders in the alternative so that a particular order takes effect, or does not take effect, according to whether stipulated conditions are complied with.

Restraining orders

85. (1) If the MyLine Tenancy Services is satisfied, on application by a landlord, that there is a risk that the tenant or a person permitted on the premises by the tenant may cause serious damage to property or personal injury, the MyLine Tenancy Services may make an order (a **restraining order**) restraining the tenant and other persons on the premises from engaging in conduct of a kind described in the order.
- (2) If the MyLine Tenancy Services is satisfied, on application by a tenant, that there is a risk that a co-tenant or a person permitted on the premises by a co-tenant may—
- (a) cause serious damage to property;
 - (b) cause personal injury;
 - (c) if the co-tenant is a domestic associate or former domestic associate of the tenant—commit an act of domestic abuse, the MyLine Tenancy Services may make a restraining order restraining the co-tenant and other persons on the premises from engaging in conduct of a kind described in the order
- (3) In considering an application under subsection (2), the MyLine Tenancy Services must have regard to such of the following orders and proceedings (if any) as are relevant to the application:
- (a) any other relevant legal proceedings
- (4) An application for a restraining order may be made without notice to the persons against whom the order is sought but, if the order is made without giving them a reasonable opportunity to respond to the allegations against them, the MyLine Tenancy Services must allow them a reasonable opportunity to satisfy it that the order should not continue in operation.
- (5) A person must not contravene a restraining order.

Representation

Representation

86. (1) A party to a tenancy dispute may only be represented in proceedings before the MyLine Tenancy Services, or at a conciliation conference under this Code, as allowed by this section.
- (2) A party to a tenancy dispute may be represented by a lawyer if—



- (a) all parties to the proceedings agree to the representation and the MyLine Tenancy Services is satisfied that it will not unfairly disadvantage a party who does not have a professional representative;
 - (b) the MyLine Tenancy Services is satisfied that the party is unable to present the party's case properly without assistance
 - (c) another party to the dispute is a lawyer, or is represented by a professional representative
 - (d) the TAP has intervened in, or is a party to, the proceedings
- (3) A party to a tenancy dispute may be represented by a person who is not a lawyer if—
- (a) the party is the MyLine Tenancy Services appointed by the landlord to manage the premises on the party's behalf;
 - (b) all parties to the proceedings agree to the representation and the MyLine Tenancy Services is satisfied that it will not unfairly disadvantage an unrepresented party;
 - (c) the MyLine Tenancy Services is satisfied that the party is unable to present the party's case properly without assistance
- (4) In this section—
- Professional representative** means—
- (a) a lawyer, a law clerk, or a person who holds or has held legal qualifications under the law of the Lesotho or another place;
 - (b) a land agent, or an officer or employee of a land agent

Remuneration of representative

87. A person must not ask for or receive a fee for representing a party to a tenancy dispute in proceedings before the MyLine Tenancy Services or at a conciliation conference under this Code, unless—
- (a) the representative is a lawyer or a law clerk employed by a lawyer;
 - (b) the representative is an officer or employee of a body corporate who represented the body corporate in the proceedings;
 - (c) the representative is the MyLine Tenancy Services who represented a landlord in the proceedings whose premises had been appointed to manage on behalf of the landlord

